

		The court will give notice.
6	Burciaga – Limited Conservatorship; 30-2020-01174580	Motion to Be Relieved Law Office of Michael R. Weinstein’ s motion to be relieved as counsel for Maria Ramirez (ROA 136) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Jones – Trust; 30-2026-01559861	
8	Boudakian – Conservatorship; 30-2024-01385950	
9	Ueberroth – Trust; 30-2025-01472222	Stipulation and Order signed 06/09/2026. Motion moot.
10	Baker – Trust; 30-2025-01487809	Demurrer and Motion to Strike The Demurrer by Cynthia K. Baker-Fox to Jennifer Lynn Baker’s Amended Petition (ROA 27) is OVERRULED. Cynthia K. Baker-Fox’s Motion to Strike Portions of the Amended Petition of Jennifer Lynn Baker (ROA 26) is DENIED. I. DEMURRER (ROA 26) Cynthia K. Baker-Fox (Cynthia) demurs to Jennifer Lynn Baker’s Amended (1) Petition for Trust Accountings [PCs 16060-s[sic]16062]; (2) Petition for Invalidation & Reversal of Trust Amendments an & Return of Assets [PCs 1600.5, PCs 6112 & PCs 850]; (3) Petition for Breach of Fiduciary Duty [PCs 16002-s 16015]; (4) Petition for Compensatory & Double Damages [PCs 859]; (5) Petition for Surcharge & Other Relief [PCs 17000 et seq.]; (6) Petition for Punitive Damages [Civil Code 3294] on the ground that each cause of action fails to state sufficient facts and is uncertain. Cynthia also demurs to each cause of action on the ground that the court lacks jurisdiction over any of the claims

	because venue is proper in San Bernadino County. Each of those grounds is addressed below. <u>Failure to state sufficient facts.</u> "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. <i>William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) As explained by the California Supreme Court: "The complaint in a civil action serves a variety of purposes [citation], of which two are relevant here: it serves to frame and limit the issues [citation] and to apprise the defendant of the basis upon which the plaintiff is seeking recovery [citations]. In fulfilling this function, the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts." (<i>Committee On Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 211–212.) "A complaint will be upheld ""so long as the pleading gives notice of the issues sufficient to enable preparation of a defense."" (<i>Thomas v. Regents of the University of California</i> (2023) 97 Cal.App.5th 587, 611.) Each of the causes of action included in Jennifer's Amended Petition is sufficient to enable preparation of a defense. The demurrers to all causes of action on the ground they failed to state sufficient facts are OVERRULED. <u>Uncertainty.</u> ""[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond."" (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292. This is, in part, "because ambiguities can reasonably be clarified under modern rules of discovery." (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135.) As set forth above, each of the causes of action included in the Amended Petition is sufficient to allow a response. Accordingly, the demurrers to all causes of action on the ground that they are uncertain are OVERRULED. <u>Improper venue.</u> Finally, Cynthia demurs to each cause of action on the ground the court lacks jurisdiction because proper venue is in San Bernadino County. This argument conflates jurisdiction and venue which, for the most part, are separate and distinct concepts. However, those distinctions do not need to be addressed here because Cynthia is statutorily barred from making the venue argument pursuant to Code of Civil Procedures section 396b(a), which reads: "Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial
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	thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurrers, or moves to strike . . . files with the clerk, a notice of a motion for an order transferring the action or proceeding to the proper court, together with proof of service upon the adverse party, a copy of those papers.” The exceptions provided in section 396a do not apply here. This court has subject matter jurisdiction because the trust was executed in Orange County, California and the trust property includes real property located in Orange County California. (Amended Petition, Exhibit.) No motion for an order transferring the action has been filed with this court and no proof of service of such motion has been filed with this court. The demurrer is OVERRULED. II. MOTION TO STRIKE (ROA 55) Cynthia seeks to strike the passages of the Amended Petition that refer to punitive and double damages. Code of Civil Procedure section 436, which governs motions to strike, reads: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Emphasis added.) By its language, the statute is permissive (“may”). Use of motions to strike “should be cautious and sparing.” (<i>PH III Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682-1683.) If true, the allegations of the Amended Petition could be sufficient to support an award of double and/or punitive damages. The motion to strike is DENIED. The court will give notice.
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